Eli Lilly – acquisition of Clazakizumab licence from CSL Behring

MN-40012

Phase 1 Determination

Acquisition may be put into effect

6 May 2026

1. Determination and statement of reasons

Notified acquisition	Eli Lilly and Company (**Eli Lilly**) and CSL Behring LLC (**CSL Behring**) propose to enter into a licence agreement under which Eli Lilly would be granted certain exclusive rights to develop and commercialise Clazakizumab, an anti-interleukin-6 (**IL-6**) monoclonal antibody, for certain new indications including atrial fibrillation, atherosclerotic cardiovascular disease and other cardiovascular indications (the **Acquisition**). Under the licence agreement, CSL Behring would retain exclusive rights to continue the development and commercialisation of Clazakizumab for the prevention of cardiovascular events in patients with end stage kidney disease.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the C*ompetition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Eli Lilly, is a US-based pharmaceutical company which discovers, develops, manufactures and markets human pharmaceutical products for various therapeutic areas, including diabetes, oncology, immunology and neuroscience. Eli Lilly is publicly listed on the New York Stock Exchange. The target, CSL Behring, is a subsidiary of CSL Limited, a publicly listed global biopharmaceutical business, which is headquartered in Australia and listed on the Australian Stock Exchange (ASX:CSL). CSL Limited develops, manufactures and markets therapies derived from human plasma and recombinant technologies for rare and serious diseases. It provides treatments for immunology, hematology, cardiovascular and metabolic disorders.
Overlap and relationship between the parties	Both parties are active in the development, manufacturing and marketing of human pharmaceutical products in Australia. Clazakizumab is currently not commercialised by CSL Limited, and Eli Lilly does not market any IL-6 inhibitors or have any such products in clinical development. Eli Lilly does not market any other treatments for atrial fibrillation or atherosclerotic cardiovascular disease. Eli Lilly is developing other therapies for the treatment of atherosclerotic cardiovascular disease, one of the indications for which it plans to develop Clazakizumab. However, there are significant differences between these other pipeline therapies and Clazakizumab, including that the other therapies are not anti-inflammatory and that they have different therapeutic approaches, mechanisms of action, modality and target patients.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the C*ompetition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering

	notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • It appears unlikely that Eli Lilly's existing pipeline therapies under development for atherosclerotic cardiovascular disease (if they can be commercialised) would compete with Clazakizumab (if it can also be commercialised) because of fundamental differences between the therapies. • There is no competitive overlap between Eli Lilly's and CSL Behring's research, development or marketing activities relating to IL-6 inhibitors.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act